

25CHCV02190 25CHCV02190

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Case Number: 25CHCV02190 Hearing Date: August 20, 2026 Dept: F49

Dept. F49

Date: 8/20/26

Case Name: Michelle West v. Hyundai Motor America, and
Does 1-50

Case No. 25CHCV02190

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 20, 2026

MOTION FOR
ATTORNEY FEES

Los Angeles Superior
Court Case No. 25CHCV02190

Motion filed: 3/16/26

MOVING PARTY: Plaintiff Michelle West

RESPONDING PARTY: Defendant Hyundai Motor America

NOTICE: OK

RELIEF REQUESTED: An order from this Court awarding Plaintiff Michelle West attorney fees in the amount of \$18,327.50 and costs in the amount of \$720.60 pursuant to Civil Code section 1794, subdivision (d).

TENTATIVE RULING: The Motion is GRANTED IN PART.

BACKGROUND

This action arises from alleged defects in a 2024 Hyundai Tucson leased by Plaintiff Michelle West ("Plaintiff"). On June 24, 2025, Plaintiff filed a Complaint against Defendant Hyundai Motor America ("Defendant") and Does 1 through 50, alleging the following violations of the Song-Beverly Consumer Warranty Act: (1) breach of express warranty, (2) breach of implied warranty, and (3) violation of Song-Beverly Act section 1793.2, subdivision (b).

On July 31, 2025, Defendant filed an Answer.

On December 31, 2025, Plaintiff filed a Notice of Settlement of Entire Case.

On March 16, 2026, Plaintiff filed the instant motion for attorney fees and costs (the "Motion"). On August 7, 2026, Defendant filed an Opposition. On August 13, 2026, Plaintiff filed a Reply.

ANALYSIS

Attorney fees are allowed as costs when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).) In a lemon law action, costs and expenses, including attorney fees, may be recovered by a prevailing buyer under the Song-Beverly Act. (See Civ. Code, § 1794, subd. (d).)

Pursuant to the Song-Beverly Consumer Warranty Act, "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the

judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)¿

The attorney bears the burden of proof as to the "reasonableness" of any fee claim. (Code Civ. Proc., § 1033.5, subd. (c)(5).) This burden requires competent evidence as to the nature and value of the services rendered. (Martino v. Denevi (1986) 182 Cal.App.3d 553, 559.) "[T]he verified time statements of the attorneys ... are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford v. Board of Trustees of Cal. State University (2005) 132 Cal.App.4th 359, 396.) Even without detailed time records, the "[t]estimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees." (Martino, at p. 559.)¿

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488, quoting Premier Medical Management Systems, Inc. v. Cal. Insurance Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.) The Court has discretion to reduce fees that result from inefficient or duplicative use of time. (Horsford, supra, 132 Cal.App.4th, at p. 395.)¿

In determining reasonable attorney fees, the trial court begins with the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36.) The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (Ibid.) These factors include (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, and (4) the contingent nature of the fee award. (Ibid.)

A. Attorney Fees

(1) Prevailing Buyer

Plaintiff

contends that Plaintiff is a prevailing buyer entitled to attorney fees, costs, and expenses because Plaintiff has received a net monetary recovery in an amount representing restitution damages for all car payments made. (Mot., at p. 6.) Plaintiff additionally notes that the Settlement Agreement between the parties designates Plaintiff as the prevailing party for the purposes of a fee motion. (Ibid.) Defendant does not dispute that Plaintiff is the prevailing party. Instead, Defendant asserts that the claimed fees are unreasonable and excessive. The Court accordingly finds that Plaintiff is a prevailing buyer pursuant to Civil Code section 1794, subdivision (d).

(2) Reasonableness of Hourly Rates

The reasonable hourly rate is the “prevailing rate for private attorneys in the community conducting noncontingent litigation of the same type.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1133.) “The experienced trial judge is the best judge of the value of professional services rendered in [their] court.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1086.)

In determining the lodestar rate, “the court may rely on its own knowledge and familiarity with the legal market” in addition to evaluating the following factors: (1) the experience, skill, and reputation of the attorney requesting fees, (2) the difficulty or complexity of the litigation, and (3) affidavits from other attorneys regarding prevailing fees in the community. (569 East County Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 437.)

Plaintiff seeks to recover attorney fees for work performed by four individuals at rates Plaintiff contends are reasonable:

1.

attorney Michael Saeedian (“Saeedian”) at a rate of \$695.00 per hour;

2.

attorney Christopher Urner ("Urner") at a rate of \$525.00 per hour;

3.

law clerk Anastasiia Dub at a rate of \$250.00 per hour; and

4.

paralegal Daisey Hernandez at a rate of \$150.00 per hour.

(Saeedian Decl., ¶ 11.) In support of these rates, Saeedian attests to the litigation experience and qualifications of both himself and Urner, and the training and experience of Dub. (Id., ¶¶ 3-5.) Saeedian also lists Song-Beverly cases in which his firm's rates have previously been approved. (Id., ¶ 15.) Plaintiff also refers to the current Laffey Matrix and attaches a copy of the 2017-2018 United States Consumer Law Attorney Fee Survey Report to support that the requested fees are reasonable rates for contingency legal work. (Id., ¶¶ 13-14, Exh. C; Mot., at p. 12.)

In Opposition, Defendant argues that the foregoing rates are unsupported and unreasonably high. (Opp'n, at pp. 5-6.) Defendant asserts that Saeedian's declaration provides no detail regarding Saeedian's or Urner's experience or expertise in lemon law, specifically, and that the cases in support of the rates are hand-picked and fail to account for prevailing community rates. (Ibid.)

The Court evaluates the reasonableness of the requested rates by considering the case's procedural posture and complexity. This matter resolved within months of filing, without extensive discovery or motion practice, and involved a single plaintiff against a single defendant, presenting a straightforward matter without complexity. Balancing the nature and complexity of the present litigation with the skill and experience of counsel, the Court accordingly exercises its discretion to adjust the rates of Saeedian and Urner to \$550 and \$425, respectively, to more accurately reflect prevailing rates in the community for similar work.

(3) Reasonableness of Hours Incurred

Plaintiff supports the

requested lodestar figure with a billing summary reflecting 35.5 total hours of legal work performed across multiple stages of litigation, including case preparation and evaluation, settlement, and preparation and filing of the Motion. (Saeedian Decl., Exh. A.) Saeedian attests that the billing summary is a true and correct itemization of the billing in this case, and states that most tasks are recorded in the client file as they occur, except for personal appearances, depositions, and phone calls, which are recorded immediately after completion. (Id. ¶ 9.) This billing statement and the declarations of counsel are sufficient to establishment entitlement to the award. (Horsford, *supra*, 132 Cal.App.4th, at p. 396; Martino, *supra*, 182 Cal.App.3d, at p. 559.) The burden is thus on Defendant to challenge specific items with adequate authority and evidence.

Defendant argues

that many of Plaintiff's counsel's billing entries are padded, duplicative, or purely clerical. (Opp'n, at p. 8.) Defendant further contends that the following entries are either not compensable, were unnecessary to the litigation, or are overbilled: (1) tasks that occurred prior to formation of the attorney-client relationship, (2) research regarding vehicle safety and recalls and review of filings related to Defendant's motion to compel arbitration, and (3) time expended on the Motion. (Id., at pp. 9-10.)

(a)

Duplicative and Padded Billing

First, Defendant argues that several billing entries are duplicative. Specifically, Defendant identifies a June 24, 2025 entry billed by Urner to "[r]eview file including Client notes, repair records, financial documents, analyze legal claims in preparation for drafting complaint." (Opp'n, at p. 8.) Defendant asserts that this entry duplicates Saeedian's May 12, May 13, May 23, and June 3, 2025 entries billing for analyzing the vehicle history, Plaintiff's payment history, and relevant documents. (Ibid.)

Plaintiff contends that Saeedian's

and Urner's review of the case file served distinct purposes, with Saeedian's review related to pre-litigation evaluation of the case for merit. (Opp'n, at p. 7.) Review of the relevant entries confirms this characterization and shows that Urner reviewed the case file to prepare to draft the Complaint. (Saeedian Decl., Exh. A.) The Court agrees that review of the case file may be necessary

at various stages of litigation, and finds that both the initial evaluative review and the review in preparation for filing the complaint are reasonable.

(b)

Tasks Predating Formation of the Attorney-Client Relationship

Defendant also contends that 0.5 hours in billing entries are not compensable because they predate the formation of the attorney-client relationship. (Opp'n, at p. 7.) In support, Defendant cites *Musaelian v. Adams* (2009) 45 Cal.4th 512. Nothing in the Court's ruling in *Musaelian*, however, precludes recovery of fees merely because they were incurred prior to retention of the attorney. Instead, *Musaelian* held that an attorney representing himself in response to a filing abuse may not recover attorney fees pursuant to Code of Civil Procedure section 128.7. (Id., at p. 520.) The California Supreme Court explained that "a party who acts on his or her own behalf does not thereby generate an expense that the party has become obligated to pay." (Id., at p. 517.)

As Plaintiff's counsel correctly notes, the Song-Beverly Act broadly permits recovery of attorney fees "reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) However, the challenged entries concern drafting, review, and discussion with Plaintiff concerning the attorney-client agreement rather than the merits of the case. These tasks are administrative in nature and concern formation of the attorney-client relationship, but are not reasonably necessary to the conduct of the litigation against Defendant. The Court accordingly reduces the hours billed by Saeedian by 0.5.

(c)

Safety and Recall Research

Defendant argues that the 0.9 hours billed by Urner for researching National Highway Traffic Safety Administration recalls, technical service bulletins, and consumer complaints was not relevant to Plaintiff's request for restitution and was therefore not reasonably incurred. (Opp'n, at p. 10.)

Plaintiff asserts that it is

necessary to investigate class actions regarding similar vehicles for a full initial review of the case. (Reply, at p. 6.)

The Court finds the research to be reasonably necessary to the litigation, enabling Plaintiffs to assess the prevalence of the vehicle's defects and evaluate the reasonableness of Defendant's repair attempts.

(d)

The Motion to Compel Arbitration

Defendant contends that Urner's time billed in connection with reviewing and opposing Defendant's motion to compel arbitration is excessive because Defendant has filed the same arbitration motion in numerous cases against Plaintiff's counsel and Plaintiff's counsel is already familiar with the issues presented. (Opp'n, at p. 9.) The Court agrees that the opposition to the motion to compel arbitration appears to be a standardized template that does not justify the hours expended. The Court therefore modestly reduces the hours billed by Urner by 1.0.

Defendant also contends that the time billed reviewing Defendant's reply to Plaintiff's opposition to the motion to compel arbitration, and for attending the hearing on the motion, was not reasonably incurred because "settlement was imminent." (Id., at p. 10.) Defendant, however, acknowledges that the settlement offer was not accepted until December 23, 2025, after Plaintiff's counsel's review of the reply. Until the settlement was accepted, any work in connection with the motion was reasonably necessary.

Additionally, the Court's register reflects that hearing on the motion was vacated by the clerk on January 2, 2026, the same day it was set for hearing. Plaintiff's counsel was reasonable in presuming the hearing would be held until the clerk confirmed that it had been vacated. The Court therefore does not find the entries connected with reviewing the reply or appearing for the hearing to be unreasonable.

(e)

The Fee Motion

Finally, Defendant argues that the

time billed in connection with the instant Motion is excessive. Defendant asserts that the Motion is a recycled form or template motion used by Plaintiff's counsel in other cases, noting that the Motion references attorney rates in the Fresno/Madera area, indicating that venue information from prior motions was not removed or updated. (Opp'n, at p. 10.) Defendant further argues that the anticipated time reviewing the Opposition, preparing the Reply, and attending the hearing should not be awarded because the hours are speculative. (Id., at p. 11.)

Plaintiff contends that the time billed accurately reflects the time necessary to compile detailed billing records, review the case file, verify the accuracy of time entries, prepare a declaration substantiating the fees, and draft the memorandum. (Reply, at pp. 8-9.) Plaintiff also avers that the time Plaintiff's counsel spent reviewing the Opposition and drafting the Reply was greater than anticipated. (Id., at p. 8.) Urner attests that he expended a total of 3.4 hours in connection with drafting the Reply. (Urner Decl., ¶ 6.) This is less than the 3.5 hours anticipatorily billed. (See Saeedian Decl., Exh. A.)

The Court agrees that the issues presented in the Motion are routine such that extensive time should not be required to draft the Motion and supporting declarations or prepare for the hearing. The Court therefore further reduces Saeedian's hours by 2.0 and Urner's by 0.5.

Based on the foregoing, the Court determines the lodestar amount to be \$12,960.00, as represented by the following chart.

Name

Hours

Rate

Total

Michael Saeedian

4.6

\$550.00

\$2,530.00

Christopher Urner

22.2

\$425.00

\$9,435.00

Anastasiia Dub

2.9

\$250.00

\$725.00

Daisey Hernandez

1.8

\$150.00

\$270.00

Plaintiff does not request a lodestar enhancement, and Defendant does not seek a negative multiplier. The Court accordingly GRANTS the Motion for attorney fees in the reduced amount of \$12,960.00.

B. Reasonable Costs and Expenses

Under the Song-Beverly Act, a prevailing buyer shall be allowed to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses. (See Civ. Code § 1794, subd. (d).) A properly verified

memorandum of costs generally satisfies the prevailing party's initial burden of establishing that the claimed costs were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

Plaintiff

has filed a Memorandum of Costs concurrently with the Motion. The memorandum is verified by Plaintiff's counsel and itemizes costs for filing and motion fees and electronic filing costs, totaling \$720.60. (Memorandum of Costs, at p. 1.) Plaintiff's counsel attests that the costs were incurred to file the Complaint, serve process, and electronically file documents. (Saeedian Decl., ¶ 26.)

Defendant

does not dispute the reasonableness of the claimed costs.

Accordingly,

the Court GRANTS the Motion for costs in the amount of \$720.60.

CONCLUSION

Plaintiff's motion for attorney fees is GRANTED IN PART.

The Court awards Plaintiff \$12,960.00 in reasonable attorney fees and \$720.60 in costs.

Moving party to give notice.